REPORTABLE (95)

ERICKSON MVUDUDU
v
AGRICULTURAL AND RURAL DEVELOPMENT AUTHORITY

SUPREME COURT OF ZIMBABWE
HARARE: 7 & 18 AUGUST 2025 & 27 OCTOBER 2025

The applicant in person

A.Kadye, for the respondent

IN CHAMBERS

MAVANGIRA JA:

1. This is a chamber application in which the applicant is seeking relief in the following terms:

> "**IT IS ORDERED THAT:**
> 1. The application for condonation for non-compliance with r 66 (1) and 66 (2) as read with r 67 of the rules of the Supreme Court, 2025 be and is hereby granted.
>
> 2. The application for extension of time within which to file and serve a Notice of Appeal in terms of the rules be and is hereby granted.
>
> 3. The notice of appeal shall be filed on such date as may be fixed by the judge.
>
> 4. Each party shall bear its own costs."

2. The application is opposed. I heard the parties on preliminary points as well as the merits in order to avoid piecemeal hearings in the event that on their consideration, the preliminary points would not dispose of the matter.

FACTUAL BACKGROUND

3. The applicant was employed as the Chief Executive Officer of the respondent, the Agricultural and Rural Development Authority (ARDA), a statutory body established under the Agricultural and Rural Development Authority Act, [*Chapter 18:01*]. He was also an executive board member of the said respondent. He was sent on special leave on 26 February 2009. On 19 May 2009, he was notified by the respondent of its decision to terminate his employment. His contract of employment was terminated by the respondent on 19 May 2009 through a letter. There were no disciplinary proceedings conducted

4. Aggrieved, by the discharge from employment, the applicant referred the matter to a Labour Officer for conciliation. A certificate of no settlement was issued and the matter was referred to arbitration. Before the arbitrator, the applicant argued that the respondent had unfairly dismissed him by way of a letter without any disciplinary hearing. The respondent, on the other hand, argued that it did not dismiss the applicant but just served him with a letter for special leave without loss of salary and benefits. It contended that there was no need for a disciplinary hearing, but the applicant had proceeded to go against the employer and that such conduct amounted to repudiation of his contract of employment.

5. The arbitrator held that the compulsory special leave was null and void and the termination of employment was unlawful as it flowed from a nullity and thereby ordered the reinstatement of the applicant. Dissatisfied with the decision of the arbitrator, the respondent appealed to the Labour Court which held that the applicant was entitled to back pay and damages *in lieu* of reinstatement. Irked by the decision of the Labour Court, the applicant appealed to this Court under SC 446/14. The appeal was heard on 19 May 2015 and judgment was handed down on 20 October 2015 under judgment number SC 58/15. The judgment reflects that this Court

found, *inter alia,* that the arbitrator misconceived the basis and scope of his discretion under *proviso* (iii) to s 89 (2) (c) (iii) of the Labour Act. It found that the arbitrator relied upon the respondent's refusal to reinstate the applicant rather than the untenability of the employment relationship arising from the dismissal of the applicant. It concluded that the arbitrator applied the wrong test and consequently misdirected himself in that regard. Further, that he also erred by awarding punitive damages in addition to damages *in lieu* of reinstatement. The court also confirmed that in reversing the arbitrator's award of punitive damages, the Labour Court had correctly relied on the ground of appeal that raised the issue of the absence of any evidence in computing those damages in the sum of US $60 540,00 which was equivalent to 60 months' salary. The arbitrator was found to have plucked this figure from the air without relating to any evidence adduced before him to substantiate the applicant's claim.

6. This Court, per PATEL JA (as he then was) in determining the matter, stated that the applicant's appeal succeeded.

> "To the very limited extent that I have indicated in relation to the monthly salary and contractual benefits that are due to the appellant. Consequently, the correct monthly salary of US $1.032.54 (instead of US$1009.00) and an additional 2% of the basic annual salary for professional and club membership allowance (*i.e.* 2% of US$1009.00 X 12) are to be applied in recalculating the amounts payable to the appellant in respect of back pay and benefits, cash *in lieu* of leave and damages for loss of employment. I should add that the resultant adjustments are considerably smaller than would have been the case had the appellant succeeded in his wholly insupportable claim to peg his salary in the region of US $5.000.00 per month.
>
> In all other respects, which constitute the bulk of the issues before this Court, the appeal cannot be sustained and must therefore be dismissed. Given the virtually inconsequential extent of the success enjoyed by the appellant, it seems appropriate that he should bear the costs of this appeal."
>
> The court accordingly gave the following order:
>
> > "1. The appeal is partially allowed as regards the salary and allowance figures to be applied in calculating the amounts payable by the respondent to the appellant.

2. The appeal be and is hereby dismissed in all other respects.
3. The appellant shall pay the costs of this appeal."

7. Subsequent to the judgment of this Court under SC 58/15, the applicant approached the Provincial Labour Officer for allocation of the matter to an arbitrator for purposes of re-quantification. The matter was allocated to an arbitrator, one Brighton Mudiwa. The applicant raised points *in limine* in his submissions to the arbitrator. The arbitrator disposed of them thus:

> "**POINTS *IN LIMINE***
>
> The claimant did not raise the points in *limine* in the pre-arbitration and even in the heads on his heads of arguments (*sic*) but surprisingly raised the points in *limine* engulfed in the supplementary heads of arguments. (*sic*) The parties however agreed that these points be determined. The claimant raised various issues which he regarded as points in *limine* I however felt that these can be reduced to four points that this tribunal should address as per the points raised by the claimant.
> …
>
> The first point *in limine* that was raised by the claimant was on the basis that the arbitral tribunal should rule on whether an award by an arbitrator and any court order by the Labour Court or Supreme Court can override the stated position in the First Schedule (s 20(1) para 12 of the Agricultural and Rural Development Authority [*Chapter 28:01*] and the Labour Act. I will hasten to say whilst it is within the right of a party to raise a point *in limine* this point must still be related to the matter being determined. This matter in my view has already been determined by the Labour Court and further by the Supreme Court of Zimbabwe. This tribunal has no powers vested in it to go against or neither to analyse a decision that has already been determined by the superior courts. The tribunal has only one option under this circumstances that is to ensure that parties comply as per the Supreme Court disposition. The claimant therefore cannot succeed in raising other side issues that has (*sic*) no bearing to the Supreme Court order. Accordingly this point *in limine* is dismissed in its entirety.
>
> The second point *in limine* raised is that the arbitral tribunal should rule on whether the arbitrator has powers to summon witness and documentary evidence requested by a party to a dispute of both parties in terms of the Labour Act. … I also noted that this matter has been at arbitration, Labour Court and Supreme Court proceedings but these witnesses have not been summoned. In any case the Supreme Court which is the highest court has already made its pronouncement which parties should just religiously adhere to. As the claimant's case now stands the parties cannot at law revisit the issues that have already been determined. Accordingly I dismiss this point *in limine* as there

is virtually no convincing reason to summon these witnesses. The claimant however if at all has his own witnesses he is at liberty to bring them to the arbitration hearing.

The third point *in limine* as raised by the claimant is that, the arbitral tribunal should rule that paras D.30. D31, D 39 and E10 (b) and C and Annexure C1, C2, C3, D1, D2, D3, D4 of the respondent's submission dated 9 May 2017 are struck off the record and that they will not be part of the current arbitral re-quantification proceedings. The arbitral tribunal should rule whether the arbitrator has jurisdiction to handle debt collection proceedings and *rei vindicatio* proceeding involving debts and vehicle claims that have been prescribed. ….. I dismiss this point *in limine* for lack of merit.

The fourth point raised by the claimant is that, the tribunal should rule on whether the respondent fraudulently misrepresented material facts, not only at the previous arbitral proceeding, but also at these current arbitral re-quantification proceedings and whether the Labour Court or Supreme Court orders obtained through respondent's fraudulent misrepresentation were still valid. I cannot with certainty comment on this aspect as the claimant has not pointed to me any fraudulent misrepresentation. I will therefore see no reason why the claimant should make me make a meaningful determination on this aspect. Accordingly this point *in limine* is dismissed.

…… won't be swayed by either party to determine issues that are not relevant to the issue under determination. The Supreme Court disposition must guide the tribunal. The Supreme Court disposition which reads, 'In the result, the appeal succeeds to a very limited extent that I have indicated in relation to monthly salary and contractual benefits that are due to the appellant. … I should add that the resultant adjustments are considerably smaller than would have been the case had the appellant succeeded in his wholly insupportable claim to peg his salary in the region of US $5000 per month.'

It is against this background that this tribunal has found the points *in limine* by the claimant to be wayward and seriously lack merit. Can this tribunal be forgiven by saying that the claimant seems as if he is trying to make a fresh appeal to this arbitration tribunal which is a serious misconception on the clearly articulated hierarchy of our courts in Zimbabwe. I therefore dismiss the points *in limine* and hereby order that the tribunal should proceed and hear the merits of the matter as per already determined Supreme Court ruling.

…

WHEREFORE, after carefully analyzing the facts and the law, I make the following award.

1. The points *in limine* raised by the claimant are hereby dismissed in their entirety for lack of merit.

2. The tribunal to proceed into the merits of the matter as per the Supreme Court determination.

   I hereby award accordingly.

   Dated at Harare this 26th day of July 2017." (The underlining is mine)

8. Following this award by the arbitrator, the applicant filed an appeal before the Labour Court on the following grounds of appeal:

"1. The arbitrator erred at law in concluding that the matter was referred to him for arbitration in terms of s 93 (5) (b) of the Labour Act [*Chapter 28:01*] as amended by the Labour Amendment Act, 2015 when, in fact, it should be in terms of ss 93 (5) (a) and (c) of the Labour Act [*Chapter 28:01*] as amended by the Labour Relations Act, 2002 and further amended by the Labour Amendment Act, 2005.

1.1 The arbitrator erred and grossly misdirected himself in concluding that the matter was referred to him by the Supreme Court when, in fact, it was referred to him by the Labour Officer in terms of ss (sic) 93 (5) (a) and (c) of the Labour Act and or alternatively in terms of s 98 (2) of the Labour Act [*Chapter 28:01*] as read with s 5 of the Arbitration Act [*Chapter 7:15*].

1.2 The arbitrator exceeded his mandate by appointing himself as a voluntary arbitrator in terms of s 3 of the Arbitration Act [*Chapter 7:15*], this then means the arbitrator is not governed by the provisions of the Agricultural and Rural Development Authority Act [*Chapter 18:01*] and the Labour Act [*Chapter 28:01*].

2. The Arbitrator erred and grossly misdirected himself by not addressing the terms of reference, that is, seven (7) points *in limine* as agreed upon by and between the parties to the dispute.

3. The learned arbitrator erred at law by concluding that the appellant's contract of employment was terminated by the Supreme Court (at an unknown date) when, in fact, the Supreme Court did not rule on the date of termination of the employment contract.

4. The learned arbitrator erred and grossly misdirected himself in not finding that the respondent had no *locus standi*, by operation of the Agricultural and Rural Development Authority Act [*Chapter 18:01*], First Schedule [Section 20 (1)] – POWERS OF AUTHORITY, para 12, in the sense that the respondent has no powers to terminate, suspend or discharge, to pay such remuneration and allowances and grant such leave of absence to appellant.

5. The arbitrator erred at law in refusing to summon witnesses as requested by the appellant to give evidence at the quantification hearing, yet to be held.

6. The learned arbitrator erred and grossly misdirected himself by accepting the respondent's vehicle cost and debt claims when same had prescribed.

7. The learned arbitrator failed in not applying his mind to the issues before him.

7.1. Proof of respondent's misrepresentation of facts and evidence including indisputable affidavits are filed of record. (*sic*)

7.2. The learned arbitrator erred and grossly misdirected himself in not finding that the Authority and/or the Board had no *locus standi*, by operation of the

Agricultural and Rural Development Authority Act [*Chapter 18:01*], First Schedule [Section 20 (1)] – POWERS OF AUTHORITY, para 12, in the sense that the Board has no power to determine and pay such remuneration and allowances to the appellant."

9. The relief sought by the appellant is couched in the following terms:

"**8. RELIEF SOUGHT/PRAYER.**

WHEREFORE the appellant prays that the Arbitrator's Interim Arbitration Award be set aside with costs and the Labour Court substitutes it with its own decision or order as follows:

8.1. The appellant's points *in limine* be and are hereby upheld.
8.2. The respondent's point *in limine* be and is hereby dismissed.
8.3. The respondent has no *locus standi* in this case, the matter be and is hereby remitted to the Arbitrator for quantification of back pay and benefits, and the appellant is deemed to be under a valid contract of employment.

Alternatively,

The respondent has *locus standi* in this case, the matter be and is hereby remitted to the Arbitrator for quantification of back pay, benefits and damages on the record before the Arbitrator."

10. In its response to the appeal the respondent raised the following preliminary issues:

"1. The rules of the Honourable Court as well as the Labour Act [*Chapter 28:01*] as amended do not provide for appeals of this nature.

2. Assuming but without agreeing that the appeal is permissible in terms of the Labour Act [*Chapter 28:01*] as well as in terms of the rules of this honourable court, the appeal has been filed out of time.

3. Furthermore, assuming that the appeal is proper but without agreeing as to propriety of the appeal, the purported appeal does not raise any questions of law as required in terms of the law.

4. Most of the grounds of appeal are not at law proper grounds of appeal but comments and questions on factual issues.

5. The relief sought is incompetent under the circumstances."

11. In its heads of argument, the respondent articulated its points *in limine* as:

> "1. There is no provision in the Labour Act or Labour rules providing for an appeal such as one being made by applicant.
> 2. One cannot appeal against an order that has not been registered.
> 3. One cannot appeal against an interlocutory decision."

These are the issues that the court *a quo* related to in its judgment (Judgment No. LC/H/279/2018).

12. With regard to the first two issues, the Labour Court found that "the proceedings are in terms of the provisions of the Labour Act as they were before the amendment". It held that "the contention that one cannot appeal against an order that has not been registered, in terms of the law prior to the amendment, has no legal basis." It thus found that the first two preliminary points had no merit. Regarding the third issue, the Labour Court stated:

> "The third issue raised by the respondent is determinative. Respondent argues that it is trite that a party may not appeal against an interlocutory decision of a presiding officer. Appellant argues that the interim award has a final and definitive effect on the main action. Therefore it is appealable. The question is whether or not the interim award has a final and definitive effect on the main action. As stated above, the matter was before the arbitrator after a remittal by the Supreme Court for the purpose of recalculating the amounts payable to the appellant in respect of back pay and benefits, cash in lieu of leave and damages for loss of employment. The parties before this court are the parties that were before the Supreme Court when the appeal was heard. In our view for applicant to seek to challenge the *locus standi* of the Respondent is ill advised. No new party can be introduced to quantification proceedings if the Supreme Court judgment is complied with. Now, to determine if the interim award has a final effect, PATEL JA stated in *Net-One Cellular (Pvt) Ltd & Anor* v *Econet Wireless (Pvt) Ltd & Anor* SC 36/17 that the test is whether the order or judgment in question is decisive or definitive of the rights of the parties and has the effect of disposing the whole or portion of the relief claimed by one of them. The relief claimed by appellant is the quantification of damages using the figures stated in the disposition in the Supreme Court judgment SC 58/15.
> …
> The issue between the parties is the recalculation using the guidance from the Supreme Court. That has not been done and an order has not been given that it should not be done. The interim award by the arbitrator does not therefore dispose of that issue. respondent's objection on that point is therefore with merit." (The underlining is mine)

The court *a quo* concluded by finding that the appellant had improperly appealed against an interim order, that it was not necessary to consider the other points raised by the respondent *in limine* and consequently striking the matter off the roll.

13. Aggrieved by this result, on 27 July 2018, the applicant filed with the Labour Court an application titled "NOTICE OF APPLICATION FOR LEAVE TO APPEAL TO THE SUPREME COURT FROM THE LABOUR COURT." In para 4 of his founding affidavit to the application, the applicant stated that he was making "an application for leave to appeal to the Supreme Court in terms of r 43 of the Labour Court of Zimbabwe Rules." In paras 6 and 7, he stated as follows:

> "6. In terms of s 92 of the Labour Act and r 43 of the rules of this honourable Court where a litigant is aggrieved by an order of this Court and intends to appeal to the Supreme Court he or she is required to apply for leave.
>
> 7. I verily believe that this Honourable Court erred in its approach to the matter.
>
> 7.1. In particular I submit that the Court ought to have determined the respondent's *locus standi* to be heard in the court. The question is: Can respondent be heard in the court by operation of the Agricultural and Rural Development Authority Act [*Chapter 18:01*], Section 20 (1) First Schedule (Section 21 (1) (*sic*) – POWERS OF AUTHORITY, para 12, in the sense that the respondent had and has no powers to terminate employment of, to appoint, suspend or discharge, to pay such remuneration and allowances to, and grant such leave of absence to, the applicant (then appellant)?. The legal process to be followed in terms of the Agricultural and Rural Development Authority Act [*Chapter 18:01*] is diagrammatically illustrated in document marked "B". This means the court Judgment No. LC/H/279/2018, the Interim Arbitration Award dated 26 July 2018, the Supreme Court judgment SC 58/2015, the Labour Court judgment No. LC/H/87/14, the Arbitration Award dated 28 October 2010 and the Arbitration Award dated 26 January 2010 are nullities at law and are infringing the applicant's (then appellant's) constitutional right to protection of the law.
>
> 7.2. This further means no quantification can be held with a respondent who has no powers to fix or determine the applicant's salary and benefits, to appoint, suspend or discharge the applicant, to grant leave of absence to the applicant (then appellant), to terminate applicant's contract of employment and who

has no *locus standi* to be heard in any court on this matter. The court in its judgment No. LC/H/279/18 states that, "No new party can be introduced to quantification proceedings …" the effect of its conclusion is to force the applicant to go ahead with the quantification with a party with no *locus standi* in terms of the law while at the same time impliedly or indirectly acknowledging that the Respondent has no *locus standi.*

7.3. I am aggrieved by the aforesaid court's determination and request the referral of the *locus standi* matter to the Constitutional Court for determination. I also intend to appeal the improper striking off of the appeal on the grounds that appear in the Draft Notice of Appeal which is attached hereto marked "C".

7.4. I submit that the Court's judgment and all prior court judgments and arbitral awards infringe the applicant's (then appellant's) constitutional right to protection of the law as enshrined in s 18 (1) of the former Constitution; Section 20 (1) First Schedule (Section 21 (1) (*sic*) – POWERS OF AUTHORITY para 12 of the Agricultural and Rural Development Authority Act [*Chapter 18:01*]; Section 33 of the Agricultural and Rural Development Authority Act [*Chapter 18:01*]; ss 6 and 7 of the Labour Act [*Chapter 28:01*]; ss 11, 16 (1), 16 (3) and 18 (1) of the former Constitution of Zimbabwe and ss 3 (1) (a) and (b), 44 (2), 47, 56 (1), 57 (c), 57 €, 62 (2), 62 (3), 65 (1), 65 (4), 68 (1), 68 (2), 68 (3), 71 (3), 71 (4), 85 (1) and 165 (1) of the Constitution of Zimbabwe Amendment (No. 20) Act, 2013.

7.5. The Labour Court is requested by the applicant (then Appellant) to refer the matter to the Constitutional Court in terms of s 175 (4) of the Constitution of Zimbabwe Amendment (No. 20) Act, 2013." (The underlining is mine)

14. In the final para of his founding affidavit to the application, being para 22, the applicant's prayer was "that the referral of the constitutional matter to the Constitutional Court and the application for leave to appeal to the Supreme Court be granted."

15. The application for leave to appeal to the Supreme Court was granted by the Labour Court. The applicant made a separate application for referral of constitutional issues to the Constitutional Court. He averred that he made this separate application in compliance with a directive given by the Labour Court. That application was dismissed by the Labour Court which stated *inter alia* under judgment number LC/H/23/2021:

"The applicant alleged that his fundamental rights had been infringed by the respondent's management, the non-executive board members, the respondents, the arbitrators and the courts. In view of the alleged breach, he sought that the dispute be referred to the Constitutional Court in terms of s 175(4) of the constitution of Zimbabwe.

Section 175 (4) of the constitution provides that:
…
Two requirements arise from the above provision one, the matter should arise in any proceedings before a court, and two, and the request must not be frivolous or vexatious. The request for referral was made by the applicant after the court had already dealt with the substantive issues at the applicant's appeal. The issues were only raised before the court during the hearing of the application for leave to appeal the court's decision to the Supreme Court.

The constitutional provision relied on by the applicant in bringing this application provides that

'If a constitutional matter arises in any proceedings before a court …'

It is my considered view that the constitutional issue must be relevant or must relate to the issues before the court.

The issues that the applicant is seeking to raise are not directly relevant, or do not arise from the proceedings before the court. No constitutional infringement has been alleged in relation to the proceedings of the application for leave to appeal. The applicant seeks to impugn all decisions that have been handed down and all awards that have ever been handed down in his case and they are not few considering that his dismissal was in May 2009 and to date the matter is still in the courts. It has been to the Supreme Court, the then apex court of the land and back.

The challenges that are now being raised as constitutional issues were decided up to the Supreme Court and cannot now be revisited and if they must, it cannot be this court that can revisit a decision of the Supreme Court. The Labour Court has no such jurisdiction.

The issues also raised as constitutional issues must also be such that the Labour Court has jurisdiction over them. The Labour Court has no powers of reviewing process that has been through the courts up to the Supreme Court. This court can also not even review decisions of other judges of the Labour Court which were handed down by the other parties. The court cannot even review actions taken by management at the respondent workplace unless it is referred through the proper channels.
For example, one of the alleged constitutional breach alleged (*sic*) is:

> 'The most serious infringement of the applicant's fundamental rights is the fact that the applicant was unlawfully dismissed without any misconduct

> charges being laid against him, let alone, without following appropriate procedure in termination of the applicant's contract of employment …'
>
> That this was a breach of the applicant's contract was settled up to the Supreme Court level and he was awarded damages for the unfair loss of his employment. We cannot keep on going back to the breaches which have already been settled by the courts.
>
> There must be an end to litigation, once the Supreme Court settled the dispute that is the end of the road save for the quantification issues.
>
> The applicant alleges that all the awards, all the Labour Court judgments and the Supreme Court judgments were disabled. If there was anything wrong with the Supreme Court judgment, it cannot be brought back to the arbitrators and the Labour Court. The issues raised, the manner in which they are being raised seem to lend credence, to the fact that the appellant is just being frivolous and vexatious.
> ……..
> It is this court's considered view, that in raising preliminary points which seek to challenge a decision of the Supreme Court before the arbitrator and again before the Labour Court, and also in seeking to reopen the dispute on the merits of the fairness of the dismissal when the Supreme Court has already pronounced itself on that issue, the applicant's conduct is indeed marked by a lack of seriousness and the conduct is inconsistent with logic and good sense. He surely cannot expect to succeed in getting the arbitrator and this court to review a decision by the Supreme Court.
>
> The applicant cannot seriously expect the arbitrator and the Labour Court to reopen the dispute at this stage. The applicant must be taken to fully appreciate that he cannot succeed. He is merely being vexatious.'" (The underlining is mine).

16. The Labour Court thereafter held that the request was frivolous and vexatious and dismissed it with no order as to costs. Note may be taken at this juncture that it is against this judgment that the applicant now seeks, in this application, condonation and extension of time within which to file an appeal.

17. It is also important to mention that in the intervening period and before filing this application, the applicant filed an application for direct access to the Constitutional Court in terms of r 21 of the Constitutional Court Rules, 2016 and s 167 (5) of the Constitution of Zimbabwe Amendment (No. 20) Act, 2013. On 3 November 2021, the Constitutional Court dismissed the application under judgment number CCZ 10/21. In the penultimate paragraph of the judgment the Constitutional Court stated:

> "The court has spelt out what an applicant is required to establish in order to gain access to its portal. *In casu,* the applicant has failed to show that the application has prospects of success. The Labour Court determined that the application was frivolous and vexatious. That judgment precludes him from making an application for direct access. The prospects of success of the main application have been found wanting. Accordingly, unless and until the judgment is set aside, the parties hereto must adhere to it.
>
> In the premises, the application is dismissed with no order as to costs."

18. The applicant thereafter filed in the Labour Court an application for condonation of late filing of an application for leave to appeal to the Supreme Court. The Labour Court granted the application. The applicant then filed an appeal with this Court on 18 January 2023 against the decision of the Labour Court LC/H/23/2021 per HOVE J dated 26 March 2021. On 10 November, 2023, the appeal was, by consent, struck off the roll of this Court, with each party bearing its own costs. On 6 December, 2023, the applicant filed an application for condonation and extension of time within which to note an appeal against the Labour Court's decision with the Registrar of the Supreme Court. The application was struck off the roll, on 24 January, 2024. The applicant requested full reasons for the decision to strike the matter off the roll and the judgment was availed on 2 April 2025 in judgment No. SC 32/25. On 6 May 2025 the applicant filed an application for Condonation and extension of time. That application was struck off the roll, on 30 June 2025. On 25 July, 2025 the instant application was filed.

THIS APPLICATION

Preliminary Points

19. The present application, filed on 25 July 2025, was set down for 7 August 2025 on which date the hearing was postponed to 18 August 2025. The applicant raised three preliminary points.

The first was that the respondent has no *locus standi*, is not the proper party to deal with this matter as it is only the paymaster and that it is the Minister of Agriculture who has the legal standing as he is the one vested with the power to deal with issues to do with, *inter alia*, his (the applicant's) appointment, discharge, remuneration, salary, allowances, leave of absence.

20. The second preliminary point was that by domino effect, the appointment of the legal practitioners becomes an illegality as well as they have no right to deal with the said issues. He cited the case of *MacFoy* v *United Africa Company Limited* [1961] 3 All ER 1169. He contended that issue estoppel is not applicable as what is at stake is the violation of his constitutional rights.

21. The third preliminary point was said to consist of six sub-preliminary points. However, the applicant only pronounced four. The first was that the minutes certified by the Board secretary are "incompetent and invalid" and that the resolution by the respondent is a product of a meeting of the Agricultural and Rural Development Authority (ARDA) which is distinct from the ARDA Board. The applicant contended that there is therefore no valid resolution before the court and what has been produced/presented must be expunged from the record. He said that the second sub-preliminary point was that in terms of ss 23 and 11 of that Act, all resolutions should be submitted to the full Board and that in terms of the ARDA Act there is no Board secretary but the General Manager appoints someone to take minutes on his behalf. *In casu*, the resolution that is attached is just a document with a signature appended by an unknown person. It is thus incompetent as is every action arising out of it. The third sub-preliminary point raised was that D. Mutiure, the deponent to the opposing affidavit who purports to have been appointed to represent the respondent was in fact not so authorized and

in any event, there is a contradiction in that there is also a legal practitioner representing the same respondent. The fourth sub-preliminary point that the applicant raised was that D. Mutiure was only employed in 2024 and was therefore lying under oath when he said that he was aware or had personal knowledge of the facts. Furthermore, so it was submitted, D. Mutiure said in para 3 of his affidavit that he has consulted but does not say who it is that he consulted. In addition, those people that he consulted have not deposed to any affidavit(s). The applicant argued that for all these reasons his application therefore stood unopposed.

22. In response, Mr *Kadye*, for the respondent submitted that the respondent has *locus standi* and that it is the applicant who has dragged it before this Court. The applicant cannot now turn around at this stage and allege that the respondent has no *locus standi*. Further, that the averment that the applicant was not employed by the respondent was incorrect. In this regard, Mr *Kadye* referred to a letter from the respondent to him dated 7 November 2007 at p 126 of the record which letter is signed by the Acting Chairman of the respondent and not by the Minister. In the letter, the applicant is offered the position of Chief Executive Officer of the respondent and the remuneration package and other conditions are spelt out. Counsel submitted that the applicant's appointment was by the respondent, as was the dismissal. He argued that it is not correct that it is the Board that should have *locus standi* or should be a party.

23. It was also counsel's submission that the Board is the operational part of the respondent and thus whatever is done by the respondent is done through the Board. Actions of the Board cannot thus be taken away from actions of the respondent. On the third point he submitted that the deponent to the opposing affidavit is a legal and compliance officer who was

authorized by the Board, the respondent's operational arm. He contended that if the Board says that it authorized D. Mutiure, there is no basis for the applicant to deny that as he does not have knowledge of what happens in the Board. Regarding the authority of the legal practitioners to represent the respondent, counsel argued that the applicant himself served this application on the respondent's legal practitioners because he knew that they are authorized to represent the respondent. He submitted that all the points raised *in limine* should fail.

ANALYSIS

(a) Preliminary points

24. I note that from para 3 of his founding affidavit and throughout the depositions therein and in subsequent papers, the applicant refers to the respondent as "the disputed respondent." The applicant having dragged the respondent to court, this description of the respondent defies logic.

25. The two-page letter of 7 November 2007 signed by the chairman of the Agricultural and Rural Development Authority, reads in part:

> "Dear Mr Mvududu,
>
> Following your interview for the above post and subsequent discussion with my office, I am pleased to offer you the position of Chief Executive Officer of ARDA, effective from 1 January 2008.
>
> The remuneration package for the above post is as follows:
> …
> Terms outside the foregoing conditions of service will be covered in greater detail in various manuals which will be availed to you on the assumption of duty.
> …
>
> You are therefore, asked to complete and sign the attached proforma. After signing please return these forms to the undersigned together with the enclosed Contract of Appointment.
>
> …

> Finally, I would like to take this opportunity to wish you a successful future with ARDA."

The bottom of the letter is endorsed with the statement "I hereby accept employment with the Authority as set out in the letter attached." Below the statement appear, in the spaces left for that purpose, the applicant's signature and the date of such signature, being 8 November 2007.

26. I mention in passing that, among other things, the stated remuneration package is covered in 18 bullet points, each bullet point relating to a different term or benefit of what the applicant was to receive as well as the issues that he alleged to be only vested in the Minister's hands/powers. This seems to me to be a case of *res ipsa loquitor*. I am satisfied that the first preliminary point has no merit at all. In my view, by domino effect the second preliminary point collapses. Necessarily, the third preliminary point also becomes elusive to the applicant, more so when one considers the respondent's counsel's submission highlighting that the ARDA Board is the respondent's operational arm. The applicant's approach appears to be that of one who is turning a blind eye to the previous litigation stages that the parties have gone through regarding their dispute. This Court has already determined the appeal emanating from the dispute between the parties. After that determination the parties were to attend to the quantification of damages under the terms or guidance set out in the 2015 Supreme Court judgment. This seems to be a process that the applicant is trying to avoid by raising issues that were not raised before this Court then and virtually trying to reargue the dispute afresh. Should it be that the applicant's real bone of contention is that the judgment of the Supreme Court has infringed his constitutional rights, this Court would not be the appropriate forum and neither would it be relevant in his pathway or route to the appropriate forum for an

appropriate remedy. In the final analysis, I find that all the preliminary points, including the so-called sub preliminary points lack merit and they are all hereby dismissed.

(b) The merits

27. The applicant has attached a draft notice of appeal to this application. In it, he indicates that he appeals against the whole judgment of the Labour Court handed down on 26 March 2021 by HOVE J. His intended grounds of appeal read as follows:

> "**GROUNDS OF APPEAL**
>
> 1. The court *a quo* erred in law by failing to properly determine and dispose of preliminary points raised by the appellant.
>
> 2. The court *a quo* erred in granting audience to a legal practitioner without right to be heard, contrary to r 25 (4) of the Labour Court Rules, 2017.
>
> 3. The court *a quo* erred at law and grossly misdirected itself in recognizing the respondent and its representatives as having locus standi contrary to s 20 (1) First Schedule [Section 21 (1) *(sic)*] – POWERS OF AUTHORITY para 12 of the ARDA Act.
>
> 4. The Court *a quo* erred at law and grossly misdirected itself on the law by confirming the termination of the appellant's employment contrary to s 20 (1) First Schedule [Section 21 (1) *(sic)*] – POWERS OF AUTHORITY para 12 of the ARDA Act and the Labour Act.
>
> 5. The arbitration process and subsequent civil proceedings were conducted contrary to s 93 (7) (a) (ii) of the Labour Act.
>
> 6. The court *a quo* erred at law and grossly misdirected itself in granting an order not sought by either party.
>
> 7. The court *a quo* erred at law and grossly misdirected itself by dismissing the application for referral on the basis that constitutional issues were frivolous, misunderstanding the relief sought and misrepresenting the nature of the issues raised.
>
> 8. The court *a quo* grossly misdirected itself in concluding that the Supreme Court had determined the constitutional issues, when in fact those issues were not previously adjudicated.

9. The court *a quo* erred at law and grossly misdirected itself in determining an application seeking an omnibus order to set aside Arbitrator's Awards and Courts' Judgments.

10. The court *a quo* erred at law in issuing a judgment that resulted in the ongoing infringement of the appellant's constitutional rights, including the right to equal protection of the law, fair labour practices, and property rights under both the former and current Constitution of Zimbabwe.

11. Appellant's application raised material constitutional questions concerning locus standi, statutory compliance in employment termination, quantification of benefits, and the role of the respondent's Board, which warranted referral under s 175 (4) of the Constitution, the court *a quo* erred in dismissing the application."

28. The relief sought is couched in the following terms:

"**RELIEF SOUGHT**

TAKE FURTHER NOTICE THAT the appellant seeks the following relief:

1. That the appeal be allowed with each party bearing its own costs and the court *a quo*'s judgment be set aside.

2. The decision of the court *a quo* be substituted with the following:

2.1. The application for Referral of Constitutional Issues to the Constitutional Court for determination succeeds with each party bearing its own costs.

2.2 The application for Leave to Appeal to the Supreme Court, **CASE NO. LC/H/APP/552/18,** be and is hereby stayed pending the determination of the constitutional issues by the Constitutional Court.

2.3 The following constitutional questions are referred to the Constitutional Court for determination:

2.3.1 Whether the respondent and its representatives had no locus standi to terminate the applicant's contract of employment, participate in related proceedings, or act beyond the statutory powers granted under ss 6, 8, 9, 23. 20 (1) First Schedule [Section 21 (1) *(sic)*] – POWERS OF AUTHORITY, paras 12 and 33 Agricultural and Rural Development Authority (ARDA) Act and Statutory Instrument 15 of 2006, thereby infringing the applicant's constitutional rights as enshrined in ss 3 (1) (k), 46, 47, 56 (1), 57 (c), 65 (1), 65 (4), 71 (3) and 71 (4) of the Constitution of Zimbabwe.

2.3.2 Whether the respondent and adjudicating bodies acted *ultra vires* by purporting to terminate the applicant's employment in breach of the applicable statutory provisions of ss 6, 8, 9, 23, 20 (1) First Schedule [Section 21 (1) *(sic)*] - POWERS OF AUTHORITY, paras 12 and 33 Agricultural and Rural Development Authority (ARDA) Act and Statutory Instrument 15 of 2006, thereby infringing the applicant's constitutional rights as enshrined in ss 3 (1) (k), 46, 47, 56 (1), 57 (c), 65 (1), 65 (4), 71 (3) and 71 (4) of the Constitution of Zimbabwe.

2.3.3 Whether the respondent and adjudicating bodies unlawfully refused or endorsed the refusal to reinstate the applicant in breach of s 89 (2) (c) (iii) of the Labour Act and ss 23, 20 (1) First Schedule [Section 21 (1) *(sic)*] – POWERS OF AUTHORITY, para 12 and 33 of the ARDA Act as read with ss 5, 6 (2) (b) and 6 (3) of Statutory Instrument 15 of 2006, thereby infringing constitutional protections governed by ss 11 (a) and 18 (1) of the former Constitution of Zimbabwe and s 56 (1) of the Constitution of Zimbabwe.

2.3.4 Whether ordering the quantification of damages without a lawful termination of employment infringed the applicant's right to the protection of the law and other constitutional rights under ss 11 (a), 16 (1), 16 (3), and 18 (1) of the former Constitution of Zimbabwe and ss 3 (1) (k), 46, 47, 56 (1), 57 (c), 65 (1), 65 (4), 71 (3) and 71 (4) of the Constitution of Zimbabwe.

2.3.5 Whether the deprivation of the applicant's vested salary and benefits, insurance, and pension benefits without compensation contravened s 13 (2) of the Labour Act as read with ss 5, 6 (2) (b), 6 (3) of Statutory Instrument 15 of 2006 and constitutional property rights as enshrined in s 16 (1) of the former Constitution of Zimbabwe and ss 71 (1) and 71 (4) of the Constitution of Zimbabwe.

2.3.6 Whether the respondent, its representatives and adjudicating bodies had lawful authority to determine the applicant's remuneration or quantify payments contrary to s 20 (1) First Schedule [Section 21 (1) *(sic)*] – POWERS OF AUTHORITY, para 12 of the Arda Act, and whether related court decisions infringed the applicant's rights due to lack of jurisdiction and misapplication of legal authority as enshrined in s 16 (1) of the former Constitution of Zimbabwe and ss 62 (2), 62 (3), 71 (1) and 71 (4) of the Constitution of Zimbabwe.

2.3.7 Whether the applicant's unlawful termination and/or application of retrospectivity unlawfully deprived him of his vested right to salary and benefits, infringing constitutional protections enshrined in s 16 (1) of the former Constitution of Zimbabwe and ss 3 (1) (k), 71 (1) and 71 (4) of the Constitution of Zimbabwe."

29. In dismissing the application for referral, the court *a quo* found that the application was filed only after the Supreme Court had dealt with the substantive issues between the parties. It also found that the applicant sought to set aside all the decisions by the Labour Court and the Supreme Court under the guise of constitutional referral. It held that it had no power to review its own decision or that of this Court. It found that issues of improper termination of the contract of employment had already been determined and could not be reopened. It concluded that the application was vexatious. The applicant's application for direct access to the Constitutional Court was dismissed on the basis that the judgment of the Labour Court was still extant. This prompted the applicant to seek leave, from the court *a quo,* to appeal to this court against the dismissal of his application for referral to the Constitutional Court. Leave was granted and he filed an appeal with this Court. However, the appeal was struck off the roll by consent of both parties on 10 November 2023. He is now out of time for purposes of filing an appeal, hence the filing of this application.

30. The applicant filed other applications similar to the instant application which were all struck off the roll by reason of being fatally defective. In motivating this application it is his contention that the delay in lodging a valid appeal is not inordinate because there was constant litigation between the parties in the Labour Court, this Court and the Constitutional Court. It is his argument that his intended appeal has prospects of success in that he was employed in a statutory position and the respondent could not dismiss him. As such, a dismissal would constitute a violation of his constitutional rights. It is also his argument that the respondent erred in finding that he had repudiated his contract of employment because repudiation is not provided for in the Labour Act. The applicant further contends that his application was not

frivolous and vexatious as the respondent had made a series of lies in the court papers about payment of his salaries and benefits.

31. *Per contra*, the respondent argues that the applicant is approbating and reprobating as he in one stance drags the respondent to court as a respondent and in the other, disputes the existence of the respondent. It also argues that the respondent has no prospects of success on appeal and that his non-compliance with the rules was deliberate and willful. Furthermore, that the referral was raised when the Labour Court had already dealt with the substantial issues of the matter. The respondent further contends that the application did not relate to the interpretation, protection or enforcement of the Constitution. It contends that the preliminary points raised by the applicant in his application for referral, sought to challenge the decision of the Supreme Court before the arbitrator thereby seeking to reopen the matter on the merits regarding the fairness of his dismissal when this Court had already determined the same.

32. There is a plethora of judgments from this Court on the factors that must be cumulatively considered in applications of this nature. Suffice to say that the requirements are primarily, that the applicant must show that the delay is not inordinate, that there is a reasonable explanation for the delay and that there are prospects of success on appeal. In this regard, see *inter alia*, *Mzite* v *Damafalls Investment (Pvt) Ltd & Anor*, SC 21/18, *Kombayi* v *Berkout*, 1988 (1) ZLR 53 (S), *Zimind Publishers (Pvt) Ltd* v *R.G. Chirenda N.O. & Anor*, SC 96/24.

33. Regarding the extent of the delay, the judgment of the court *a quo* that the applicant intends to appeal against was handed down on 26 March 2021. In terms of r 66 (1) he ought to have filed and served his notice of appeal within 15 days thereof. The applicant is thus four years out of time. The delay is inordinate. In addition, while he gives a narration of the numerous

applications that he was filing in succession, he left certain periods of inactivity on his part unexplained. The said periods include 10 November 2023 to 6 December 2023 after his appeal was struck off the roll, 2 April 2025 to 6 May 2025 after he had obtained a written judgment and 30 June 2025 to 25 July 2025 when he filed the present application.

34. The applicant's explanation for the delay is given in his founding affidavit under the heading "**THE DEGREE OF NON-COMPLIANCE AND THE EXPLANATION FOR IT**" where the following is stated:

> "17. I verily submit to this Honourable Court, that all the requirements in this matter have been met.
>
> 17.1. Thus, one would not aptly refer to the period within which this application was noted to be an inordinate period of time. Following the Labour Court Judgment No. LC/H/23/2021 dated 26 March 2021, the applicant made an application for Direct Access to the Constitutional Court in terms of s 167 (5) as read with section of the Constitution of Zimbabwe (*sic*) on 21 April 2021. The Constitutional Court Application was heard on 21 May 2021 and judgment handed down on 3 November 2021 (ANNEXURE 'AG'). The Constitutional Court ordered that for the applicant to be heard, he has to cause the Labour Court judgment No. LC/H/23/2021 dated 26 March 2021 to be set aside. The applicant immediately filed an application for Condonation for late noting of a Leave to Appeal at the Labour Court on 2 December 2021. The Application for Condonation was heard by the Labour Court on 24 January 2022 and granted on 26 January 2022 (ANNEXURE 'AN'). Following the granting of condonation for late noting of an Application for Leave to Appeal, the applicant filed the Application for Leave to Appeal the decision of the Labour Court to the Supreme Court on 15 February 2022. The Application for Leave to Appeal the decision of the Labour Court to the Supreme Court was heard on 14 November 2022 and granted on 6 January 2023 (ANNEXURE 'AP'). Within the 15 days allowed by the Rules of the Supreme Court, the applicant filed his Appeal to the Supreme Court on 10 November on 18 January 2023. The appeal was heard by the Supreme Court on 10 November 2023 and by consent was struck off the roll with each party bearing its own costs (ANNEXURE 'AB (a)'). The applicant filed an Application for Condonation and for Extension of Time within which to note an Appeal on 6 December 2023. The application for Condonation and for Extension of Time within which to note an Appeal was heard on 24

> January 2024 and the order issued on the same day (ANNEXURE 'AB (b)'). The applicant then sort the reasons for the struck off Order (see ANNEXURE 'AB(c)'). The Supreme Court handed down the *ex tempore* judgment No. SC32/25 on 2 April 2025 (see ANNEXURE 'AB (d)'). The applicant immediately filed a second application for Condonation on 6 May 2025 and the Application was struck off the roll by consent with each party bearing its own costs on 30 June 2025 (see ANNEXURE 'AB (e)'). The explanation, with respect, is *bona fide* and reasonable, and this current application was made timeously and therefore made *bona fide*."

35. From the applicant's averments, it appears that he proffers the explanation for the delay by merely recounting the number of applications that he has filed in the past. He suggests that the resultant delay, which he downplays as "not very inordinate" should not bar the granting of this application so that the main matter may be adjudicated upon. The explanation proffered, which is a mere narration of the several applications that he has instituted to date, does not cover the whole period of delay as it leaves unexplained gaps that have been alluded to earlier; neither does it constitute a reasonable explanation.

36. On prospects of success, the applicant intends to raise 11 grounds of appeal in his intended appeal as shown in the draft notice of appeal attached to his application. In my view, the prospects of success for the intended appeal may be ascertained on the issue whether or not the court *a quo* erred in dismissing the application for referral to the Constitutional Court. In other words, did the court *a quo* err in dismissing the application? Did the applicant make before the court *a quo* a case that warranted referral to the Constitutional Court? This necessitates an answer to the question whether or not there was a constitutional issue to be referred to the Constitutional Court.

37. A constitutional matter is defined in s 332 of the Constitution as "… 'Constitutional matter' means a matter in which there is an issue involving the interpretation, protection or enforcement of this Constitution." Thus, a matter ought to be referred to the Constitutional Court if the issue raised involves the interpretation, protection and enforcement of the Constitution. In *Bonnyview Estate (Pvt) Ltd* v *Zimbabwe Platinum Mine (Pvt) Ltd & Anor* CCZ 6/19 at p 5 MALABA CJ was dealing with a chamber application for leave to appeal to the Constitutional Court from a decision of the Supreme Court. At pp 4-5 he stated as follows:

> "The requirements of an application of this nature were set out in *The Cold Chain (Pvt) Ltd t/a Sea Harvest* v *Makoni* CCZ 8/17 at pp 3-4 of the cyclostyled judgment as follows:
> ….
>
> Under s 332 of the Constitution a constitutional matter is one in which there is an issue involving the interpretation, protection or enforcement of the Constitution. Absence of an issue raised in the proceedings in the subordinate court requiring the interpretation, protection or enforcement of a provision of the Constitution in its hearing and determination would invariably be sufficient evidence of the fact that no constitutional matter arose in the subordinate court."

In my view, the same principle expressed above is equally applicable *in casu*.

38. Before the court *a quo* the applicant brought an application for referral of what he considered to be constitutional issues to the Constitutional Court in terms of s 175 (4) of the Constitution, alleging that his fundamental rights had been infringed by the respondent's management and Board members, the arbitrator and the courts, including the Labour Court, the Supreme Court and the Constitutional Court itself. The court *a quo* dismissed the application as captured in para 15 of this judgment. It found that the applicant was being vexatious in seeking to reopen the merits of his dismissal, a matter already conclusively determined by this Court under judgment number SC 58/15.

39. Section 175 (4) of the Constitution provides that:

> "If a constitutional matter arises in any proceedings before a court, the person presiding over that court may and, if so requested by any party to the proceedings must, refer the matter to the Constitutional Court unless he or she considers the request is merely frivolous or vexatious."

In *Matsika & Anor* v *Chingwena & Ors* SC 106/23 in para [59] at pp 28-29 GWAUNZA DCJ stated as follows:

> "[59] It is however, not just any question that is deserving of a referral to the apex Court. Counsel for the applicants, *Mr Madhuku,* correctly submitted that a request for referral would be frivolous and vexatious if it had no relationship with the relief that is being sought in the main matter before the court. This position was affirmed in a plethora of authorities among them *Muhala* & *Ors* v *Mukokera* CCZ 2/19 where the following was held:-
>
> A constitutional question worthy of referral is a question that is necessary **to be answered by the Constitutional Court in order that the referring court may dispose of the dispute before it.** In this regard, BARON JA in *Muhala* v *Minister of State* 1986(1) ZLR 1 (S) 5E-H reasoned:
>
> > 'The basis on which we declined to entertain this reference was that, **since the determination of the question of an alleged contravention of the Declaration of rights was unnecessary for the purposes of the order the learned Judge had decided to make, it was not competent for him to refer that question to this Court**.'" **(**My emphasis**)**"

40. *In casu,* there was no issue that needed to be answered by the Constitutional Court in order for the court *a quo* to dispose of the dispute before it. The applicant appears to be more intent on re-litigating the dispute with a view to achieving a different outcome to that currently obtaining, which he does not accept. His founding affidavit also reveals that his true grievance lies in the product of earlier proceedings. Ironically, in the same breath, he views all the earlier awards and judgments, including the judgment of this Court in SC 58/15 by virtue of which he ended up before the arbitrator Mudiwa for purposes of quantification, as infringing his fundamental rights.

41. As captured in para 6 of this judgment, under judgment number SC 58/15, this Court conclusively determined the matter and specified the amounts and percentages to be applied in recalculating the applicant's entitlements in relation to his monthly salary and contractual benefits including back pay, benefits, cash *in lieu* of leave and damages for loss of employment. The applicant is dissatisfied with the amounts specified in the judgment. He appears to believe that his fundamental rights have been infringed thereby, *inter alia*, and that is what motivated him to apply in terms of s 175 (4) for the referral to the Constitutional Court.

42. As captured in para 15 of this judgment, the Labour Court gave a clear explanation of its reasons for dismissing the application. The court was clear that the issues that the applicant was seeking to raise were not directly relevant to and did not arise from the proceedings before the court. The proceedings before the arbitrator were a result of a judgment of this Court which specified the amounts and percentages to be applied in the quantification by the arbitrator. Note may be taken of the fact that the applicant seemed oblivious of s 26 (1) of the Supreme Court Act, [*Chapter 7:13*], which provides that "(T)here shall be no appeal from any judgment or order of the Supreme Court." The applicant resisted the quantification under those indicators and alleged infringement of his fundamental rights. As stated earlier, if the applicant was aggrieved by the judgment under SC 58/15, there is no procedure by which he could seek to sideline it by asking an arbitrator to disregard or "review" the same. Furthermore, the indication by the Constitutional Court was not meant to be a flag for him to wave before the Labour Court to ensure that he is granted relief for which he does not meet the requirements. The applicant has not established any error on the part of the Labour Court in dismissing his application for referral. He could do so by showing how he has prospects of success on appeal and thereby exposing the error of the court *a quo*. I do not see such error

in the court *a quo*'s reasons for the dismissal. The court's judgment is clearly and soundly reasoned.

43. In the absence of error or misdirection on the part of the lower court, and in the absence of the establishment of prospects of success by the applicant, the fate of the application is inevitable. It has no merit and will be dismissed. This is particularly so in view of the fact that what the applicant effectively craves is a re-litigation of the dispute between the parties. This must be viewed against a backdrop of a judgment of this Court in SC 58/15 which is not only extant but also final because this Court, by virtue of s 169 (1) of the Constitution of Zimbabwe, is the final court of appeal for Zimbabwe for all matters except in matters over which the Constitutional Court has jurisdiction. The constitutional issue that the applicant has purported to create could not have arisen before the arbitrator who was seized with the quantification proceedings pursuant to the judgment number SC 58/15.

44. Ironically, it is the applicant who, on 19 January, 2017 wrote to the Provincial Labour Officer in the following terms:

> "**RE: REQUEST FOR APPOINTMENT OF A SUBSTITUTE INDEPENDENT ARBITRATOR TO COMPLETE THE QUANTIFICATION AWARD.**
>
> Reference is made to the attached letters, may you please appoint a substitute Independent Arbitrator to complete the quantification of back pay salary and benefits, and damages **as directed by the Supreme Court judgment** of 19 May 2015 and 20 October 2015." (The emphasis is added)

45. His clearly stated request having been granted, the applicant proceeded to raise issues at the quantification proceedings that were inconsistent with his request and more importantly, with the Supreme Court judgment that he was riding on. In one breath the applicant appears to have been unhappy with the Supreme Court judgment. In the next, he rode on that judgment

purporting to pursue its fruition by way of quantification being done as directed by the Court. Having initiated that sequential process, he expected the arbitrator to preside over proceedings whose end result would be a nullification of all previous proceedings and awards or judgments by the arbitrator, the court *a quo* and this Court. That is impermissible. Deriving its genesis from this background, the present application has no merit.

46. In the main, there being no prospects of success on appeal and also coupled, to a lesser extent, with the inordinate delay that has not been satisfactorily explained, the applicant has failed to meet the requirements for such an application to be granted. The applicant is a self-actor who has lost his employment. I am inclined to order that each party bears its own costs.

47. In terms of the *proviso* to r 67 of the Rules of the Supreme Court, 2025, the inevitable fate of this application being a dismissal, two other judges of this Court who have been duly appointed by the Senior Judge in accordance therewith, have concurred with me as appears hereunder.

48. In the result, it is ordered as follows:

> "1. The application be and is hereby dismissed.
> 2. Each party shall bear its own costs."

UCHENA JA : I agree

MATHONSI JA : I agree

Mlotshwa Solicitors, Titan Law, respondent's legal practitioners.